Westlaw Research Guide — Matter 44

Ngwa Nforbi v. [Employer] (Delta Hotels Santa Clara) · N.D. Cal., San Jose · Private work product · Prepared Nov. 12, 2026 · For use with Westlaw Patron Access for Pro Se (San Diego Law Library)

> **What this research has to settle.** The federal complaint stands or falls on **FCRA standing**. If the FCRA counts survive, the state counts (ICRAA, § 290.46) come along through supplemental jurisdiction; if they fail, the whole case leaves federal court. So the first priority is: *after TransUnion* (June 25, 2021), do Ninth Circuit and N.D. Cal. courts find Article III standing for a § 1681b(b)(2)(A) claim when the employer **never gave any disclosure at all**? Second priority: does the ICRAA claim work in federal court? Everything else comes after those two.

> **Access limits (from the repo's Patron Access notes):** 2 seats shared by all pro se users; **20 downloads/emails per session**, 150 per day for both seats combined; always click **Sign Off** to free the seat. Enter only through the library's "Westlaw Remote for Pro Se" link, not westlaw.com. **Reading, KeyCite and search results do not use up downloads**. Download only the documents listed as "pull" below; for everything else, write down the citation, pin page, quote and KeyCite flag.

1. Session plan (about 3 sessions, under 20 downloads each)

Session	Questions	Download budget
A (first)	Q1 FCRA standing after *TransUnion* · Q2 a disclosure that was never given · Q3 authorization defects · Q5 willfulness	≤ 12 pulls + KeyCite every known case (no download cost)
B	Q4 (b)(3) adverse action / shift reduction · Q6 ICRAA in federal court · Q7 the signed acknowledgment	≤ 12 pulls
C	Q8 § 1367(c)/(d) · Q9 § 290.46 updates, limitations, "user" · Q10 statutes' current text and Notes of Decisions	≤ 15 pulls (statute pages are worth downloading)

2. Westlaw syntax you'll use

Connector	Meaning	Connector	Meaning
&	AND	`/s` · `/p`	same sentence · same paragraph
space	OR	`/n` (e.g. `/5`)	within n words
`"..."`	exact phrase	`!` · `*`	root expander · one-letter wildcard
`%`	BUT NOT	`DA(aft 06/24/2021)`	decided after *TransUnion*

Type `adv:` before a query to force terms-and-connectors mode. Pick the jurisdiction in the selector. Use: **Ninth Circuit** plus **N.D. Cal.** (binding/local), then add **C.D./E.D./S.D. Cal.** (persuasive), then **California state** for ICRAA and § 290.46. When results are too many, re-search inside them with "Search within results".

3. Questions, search strings, and what to look for

Q1. Article III standing for § 1681b(b)(2)(A) after *TransUnion* MUST → complaint ¶ 13, Counts One and Three

```
adv: "1681b(b)(2)" /p (standing "article III" "concrete injury" "concrete harm") /p
TransUnion & DA(aft 06/24/2021)
```

```
adv: "1681b(b)(2)" /p (privacy intru! seclusion) /p (standing concrete) & DA(aft 06/24/2021)
```

```
adv: "stand-alone" "standalone" "consist! solely" /s disclosure /p (standing "article III") &
DA(aft 06/24/2021)
```

What to look for:

- Courts that accepted **privacy intrusion** (a report obtained without informed consent) as a harm close to the traditional common-law kind. Compare those courts that called it a **bare procedural / informational** violation. Write down **what facts the plaintiff alleged** in each.
- Whether the Ninth Circuit has revisited *Syed v. M-I, LLC*, 853 F.3d 492 (9th Cir. 2017) after *TransUnion*. Run KeyCite on *Syed* and filter Citing References: Cases, Ninth Circuit, after June 2021, and the "standing" headnote.
- Cases where the plaintiff alleged **"I would not have signed"** or **"I did not understand what I was authorizing"**, and whether that was enough.
- **Dismissed versus remanded**: in removed cases, a lack of standing leads to remand to state court. In cases filed in federal court, it leads to dismissal without prejudice. Mark which outcome each case had.

Q2. A disclosure that was *never given at all* (not merely cluttered) MUST → ¶¶ 9–10, 28

```
adv: "1681b(b)(2)" /p (never no fail! omit!) /s (provid! receiv! gave) /s disclosure
```

```
adv: "1681b(b)(2)" /p (acknowledg! certif!) /s receiv! /s disclosure
```

Why it matters: most reported cases involve **extraneous language in the disclosure** (e.g., *Gilberg v. California Check Cashing Stores*, 913 F.3d 1169 (9th Cir. 2019)). Our facts are different: the disclosure is **missing entirely**, and the form says it was "received." Look for cases where no disclosure was given, and see whether courts treat that as a clearer violation (helpful on willfulness) and a more concrete harm (helpful on standing).

Q3. Defects in the authorization SHOULD → ¶ 29

```
adv: "1681b(b)(2)(A)(ii)" authoriz! /p (release waiver "without reservation" acknowledg!)
```

- Can the authorization be on the same page as an acknowledgment and a third-party release? What did *Syed* hold about liability waivers? Is the authorization invalid when it rests on disclosures that were never given? If no case supports it, drop ¶ 29.

Q4. § 1681b(b)(3): cutting a current employee's shifts as "adverse action" MUST → Count Two

```
adv: "1681b(b)(3)" /p ("adverse action" "1681a(k)") /p (hours shift! schedul! reduc! demot!)
```

```
adv: "1681a(k)(1)(B)(ii)" /p (current existing) /3 employee
```

```
adv: "1681b(b)(3)" /p (standing concrete) /p ("opportunity to" dispute respond explain) &
DA(aft 06/24/2021)
```

- Is a reduction in hours (not a firing) an "adverse action"? Look for cases involving current employees, not just applicants.
- What counts as **"based in whole or in part"** on the report, and how much detail plaintiffs had to plead about the report-to-decision link.
- *Walker v. Fred Meyer, Inc.*, 953 F.3d 1082 (9th Cir. 2020): read its (b)(3) holding carefully (KeyCite it). **Write down exactly what it says about whether (b)(3) requires an actual adverse action.** [My characterization of *Walker* has

not been verified.]

Q5. Willfulness (needed for statutory damages) SHOULD → ¶ 30

```
adv: "1681b(b)(2)" /p (willful! reckless!) /p Safeco /p (template form vendor "objectively unreasonable")
```

- Did *Syed* hold that the standalone requirement is "unambiguous," which would make a violation reckless? Can an employer avoid willfulness by relying on a vendor's or SHRM's form? (Our packet's policy page is a SHRM template, V05 p.26.)

Q6. ICRAA (Civ. Code § 1786.16) in federal court MUST → Count Three

```
adv: "1786.16" /p (disclosure "investigative consumer report") /p (employ! employer)
```

```
adv: ("1786.16" ICRAA "investigative consumer reporting agencies act") /p (standing "article III") & DA(aft 06/24/2021)
```

```
adv: ICRAA /p (preempt! "1681t")
```

```
adv: "1786.50" /p ("ten thousand" "$10,000") /p (per violation each greater)
```

- **Federal standing for ICRAA:** *Parsonage* applies only in state court. Find federal cases deciding whether an ICRAA form violation alone is a concrete injury.
- Is the $10,000 owed **per violation or per plaintiff**? Do the disclosure defect and the missing check-box count as separate violations?
- Do courts treat a **criminal background check** as an "investigative consumer report" (*Connor v. First Student* (2018) 5 Cal.5th 1026)? Is there any overlap or "election" defense between ICRAA and CCRAA?
- Can a **user** (the employer) be liable under § 1786.50, or only the agency?
- **Parsonage v. Wal-Mart Assocs.**, 118 Cal.App.5th 399 (2026): **KeyCite it first**. Has the California Supreme Court granted review or depublished it? (Cal. Rules of Court 8.1115(e).) Also check the conflicting *Limon v. Circle K Stores Inc.* (2022) 84 Cal.App.5th 671 [verify citation].

Q7. The signed acknowledgment of "receipt" SHOULD

```
adv: (FCRA "1681b" ICRAA) /p (acknowledg! certif!) /s (receiv! "read and understand") /p (estop! waiv! bar!)
```

- Will the employer argue the signature estops the plaintiff or waives the claim? Look for any case holding that FCRA rights **cannot be waived** by a boilerplate acknowledgment.

Q8. Supplemental jurisdiction and tolling SHOULD → memo § 2.6

```
adv: "1367(d)" /p (toll!) /p (standing "lack of jurisdiction" "subject matter") /p (federal claim)
```

```
adv: "1367(c)" /p ("290.46" "novel" "complex issue of state law") /p (FCRA "1681")
```

- Does **§ 1367(d)** stop the clock when the federal claim is dismissed **for lack of standing**, as opposed to when the court declines supplemental jurisdiction? (Start from *Artis v. District of Columbia*, 583 U.S. 71 (2018), Citing References.) This decides how fast we must refile in state court if federal court dismisses.

Q9. Penal Code § 290.46: updates since September 2026 SHOULD

```
adv: "290.46" /p (employ! "person at risk" user)
```

```
adv: "290.46" /p ("340(a)" "338(a)" limitation! penalty)
```

```
adv: ("statute for a penalty" "340(a)") /p ("civil penalty" "exemplary") /p (individual aggrieved) & DA(aft 01/01/2015)
```

- Any new § 290.46 employment ruling, especially on who counts as a "user" (does it reach a non-decisionmaking coworker or trainer?) and on "person at risk." Compare the cases already logged: *Mendoza*, *Donaleski*, *Pastrana*, *Lerma*.
- Does the **one-year limit in CCP § 340(a)** apply to the § 290.46 civil-penalty part? If so, the binding filing date is Oct. 13, 2027.
- Can an employer be held **vicariously liable** under a statute that imposes liability on "the user"?

Q10. Statutes: current text and Notes of Decisions MUST (the code websites were blocked in my session, so these are unverified)

Pull and confirm	Check
15 U.S.C.A. §§ 1681a(k), 1681b(b)(2)–(3), 1681g(a), 1681n, 1681o, 1681p, 1681t	Current text; 2024–2026 amendments; Notes of Decisions under "standing" and "disclosure"
Cal. Civ. Code §§ 1786.2, 1786.16, 1786.20, 1786.22, 1786.40, 1786.50, 1786.52	**Exact subdivision numbers** I cited: 1786.16(a)(2)(B), (b)(1); 1786.50(a)–(b); 1786.52 limitations
Cal. Penal Code § 290.46	Current (j)(1)–(4); whether "not exceeding $25,000" limits exemplary damages or only the civil penalty
28 U.S.C.A. § 1367(c)–(d); Cal. CCP §§ 338(a), 340(a); Lab. Code §§ 246 (90-day rule paragraph), 98.6, 226, 1198.5	Text and paragraph numbers

4. KeyCite checklist: authorities already in the drafts

For each case, record: **flag** (red / yellow / blue-striped / none) · **negative history** · **pin page and quote**, checked against the opinion · **whether it still holds**. "Pull" = worth one download.

Authority	What we use it for	Specific check
TransUnion LLC v. Ramirez, 594 U.S. 413 (2021) **Pull**	Concrete harm; privacy-type harms	Confirm pins 425–31 and the formatting/informational-injury discussion (≈ 440–42)
Spokeo, Inc. v. Robins, 578 U.S. 330 (2016)	Procedural violation vs. concrete harm	Flag only
Syed v. M-I, LLC, 853 F.3d 492 (9th Cir. 2017) **Pull**	Standalone rule; willfulness; standing	Has the standing part been questioned after *TransUnion*? Pins
Gilberg v. Cal. Check Cashing Stores, LLC, 913 F.3d 1169 (9th Cir. 2019)	Standalone rule; extraneous content	Pins; standing discussion
Walker v. Fred Meyer, Inc., 953 F.3d 1082 (9th Cir. 2020) **Pull**	(b)(2) explanatory text; (b)(3)	Exactly what it holds about (b)(3)
Luna v. Hansen & Adkins Auto Transport, Inc., 956 F.3d 1151 (9th Cir. 2020) [**confirm it exists and its holding**]	Disclosure format; willfulness	Existence and holding
Bassett v. ABM Parking Servs., Inc., 883 F.3d 776 (9th Cir. 2018)	FCRA standing (defense case)	How later courts apply it
Safeco Ins. Co. of Am. v. Burr, 551 U.S. 47 (2007)	Willfulness = recklessness	Pins 57, 69
Connor v. First Student, Inc. (2018) 5 Cal.5th 1026	ICRAA covers criminal checks	Flag
Parsonage v. Wal-Mart Assocs., Inc. (2026) 118 Cal.App.5th 399 **Pull**	ICRAA state standing; $10,000	**Review granted? Depublished?**
Limon v. Circle K Stores Inc. (2022) 84 Cal.App.5th 671 [confirm]	Conflicting state-standing reasoning	Existence; status
Mendoza v. ADP Screening & Selection Servs. (2010) 182 Cal.App.4th 1644	§ 290.46 "user"	Pins 1653–57; later treatment
Donaleski v. Wal-Mart, 2009 WL 1296257 (E.D. Cal.)	Independent source/decisionmaker (defense)	Citing references since 2009
Artis v. District of Columbia, 583 U.S. 71 (2018)	§ 1367(d) stop-clock tolling	Citing references on standing dismissals
Kanter v. Warner-Lambert, 265 F.3d 853 (9th Cir. 2001); *Gibson v. Chrysler*, 261 F.3d 927 (9th Cir. 2001)	Diversity pleading; punitive damages in AIC	Pins 857–58; 945
Staub, 562 U.S. 411; *Poland*, 494 F.3d 1174; *France*, 795 F.3d 1170; *Reid*, 50 Cal.4th 512; *Patterson*, 60 Cal.4th 474; *Soo Park*, 851 F.3d 910	Cat's paw; stray remarks; franchisor control; pleading on information and belief	Flags + the pin cites carried from the packet (Vol. 07)

5. Defense playbook: read the other side's briefs

If Patron Access includes **Briefs** or **Trial Court Documents**, search them for the motions this employer will most likely file. That is the fastest way to see their arguments coming.

```
adv: "1681b(b)(2)" & "motion to dismiss" & (TransUnion) & (hotel hospitality "background check")
```

```
adv: ICRAA & "1786.16" & ("motion to dismiss" "judgment on the pleadings") & DA(aft 06/24/2021)
```

Also run the Matter 29 and Matter 26 opposing counsel (repo: `internal/docs/counsel/frederick-stanzick/`) through the Briefs database. Seyfarth's CRA-side briefs show the standard (b)(2) standing arguments.

6. Secondary sources (orientation only; don't cite unless you must)

- Search Secondary Sources: `"investigative consumer reporting agencies act" & employer & disclosure`. Look for **Rutter Cal. Practice Guide: Employment Litigation** (background-check chapter) and **Witkin, Summary of Cal. Law** if available.
- Look for an FCRA treatise or ALR annotation on "standing to sue for FCRA disclosure violations after *TransUnion*". Use it to find cases, then KeyCite those cases.

7. Red flags: stop and note them when you see them

- **Red flag / "superseded" / "abrogated by TransUnion"** on any standing case decided before 2021.
- **Ninth Circuit memorandum dispositions** can be cited if issued on or after Jan. 1, 2007, but they are **not precedent** (9th Cir. R. 36-3). District court opinions bind no one; mark them "persuasive."
- **California opinions under review**: once review is granted, a published opinion may be cited only as CRC 8.1115(e) allows. Write down the date of the grant.
- Cases where the employer **did** give a disclosure and the dispute was only about its format. These are distinguishable from ours; note the difference.
- **Cases that hurt us**: write them down too. The handoff requires listing unfavorable authority.

8. Recording template (one line per case)

Citation	Court / date	Binding?	Holding (1 line)	Pin + exact quote	KeyCite flag	Helps / hurts / distinguishable	Question #

> **When you're done:** paste the filled-in rows, or the citation list, into our chat, and send me any PDFs you downloaded. I'll then: (1) write ¶ 13 around whatever standing facts the courts have actually accepted; (2) drop or keep ¶ 29 and Count Two; (3) correct every [verify] statute subdivision; and (4) rebuild the authority table with confirmed pins and KeyCite flags.

Matter 44 · Private work product, not for filing or service · Search strings are starting points; adjust jurisdiction and date filters to the volume of results · Citations marked [confirm] or [verify] have not been checked against a primary source.